

□ Your Safety Comes First

Some of what you shared suggests you may be dealing with a situation that could put your safety at risk. You are not alone, and help is available right now — you do not need a lawyer or any money to reach it.

If you are in immediate danger, call 911.

You can reach trained, confidential help any time:

- **National Domestic Violence Hotline** — call 1-800-799-7233, or text START to 88788 (<https://www.thehotline.org>)
- **National Dating Abuse Helpline** — call 1-866-331-9474, or text LOVEIS to 22522
- **National Immigrant Women's Advocacy Project** (<https://niwaplibrary.wcl.american.edu>)
- **Immigration Advocates Network** (<https://www.immigrationadvocates.org>)
- **Text the Crisis Text Line:** text HOME to **741741** (open 24/7, for any kind of crisis)
- A safety plan can help you prepare for emergencies. The National DV Hotline can help create one.

Asking a court to protect you. If someone has hurt you or made you afraid, you can ask a court for an **Order for Protection** (sometimes called a restraining order). It is a free request you can make yourself: the court clerk's

office or a local advocate can give you the forms and walk you through them, often the same day. A domestic violence advocate (reachable through the hotline above) can help you fill them out and can go with you.

You get to decide what feels safe for you. The steps above are here whenever you are ready.

□ **Deadlines & Time-Sensitive Items**

Read this first. Missing a legal deadline can end a case. The dates below are estimates generated automatically — **always confirm the exact date with the court or a lawyer.**

□ **I came to this country on August 14, 2019. — DEADLINE MAY HAVE PASSED**

- **Estimated deadline:** 2020-08-14
- **Basis:** INA § 208(a)(2)(B); 8 U.S.C. § 1158(a)(2)(B) (one-year filing deadline)
- **Triggering event:** entry on 2019-08-14
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. Asylum applications generally must be filed within one year of arrival in the United States. Estimated — confirm the exact date with the court or a lawyer. Because this one-year asylum deadline appears to have already passed, you may still be able to apply if an EXCEPTION applies: 'changed circumstances'

that materially affect eligibility, or 'extraordinary circumstances' that excuse the late filing (for example serious illness, or ineffective assistance / fraud by a notario or non-lawyer). This exception pathway is governed by INA § 208(a)(2)(D); 8 U.S.C. § 1158(a)(2)(D). Ask an immigration lawyer whether one of these exceptions applies to you — the late deadline may not be the end of your asylum claim.

⚠ **The court hearing is scheduled for August 20, 2026.**

- **Estimated deadline:** 2026-08-20
 - **Basis:** The hearing date on your Notice to Appear / EOIR hearing notice (8 C.F.R. § 1003.18; INA § 239). Failure to appear can result in an in-absentia removal order.
 - **Triggering event:** hearing on 2026-08-20
 - **Jurisdiction:** MN
 - This is the hearing date printed on your immigration court notice — you must appear. Estimated — confirm the exact date with the court or a lawyer.
-

⚠ **Danilo hit me again on March 15 this year.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
 - **Triggering event:** incident on 2026-03-15
 - **Jurisdiction:** MN
 - Estimated — confirm the exact date with the court or a lawyer.
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Executive Summary

This intake surfaced 10 potential legal issues across Federal, Minnesota. The most strongly supported issues are Employment and Social Security Issue, Child Custody and Support Issue, and Child Custody Claim.

IMPORTANT: at least one deadline appears to have already passed — I came to this country on August 14, 2019. (computed 2020-08-14) [INA § 208(a)(2)(B); 8 U.S.C. § 1158(a)(2)(B) (one-year filing deadline)]. Confirm this immediately, as missed deadlines can end a case. Safety concerns were detected in this narrative; see the safety resources below. Analysis completeness is 75%; 13 follow-up questions below would strengthen the assessment.

Completeness Score: 75%

Untitled Intake

Generated: 2026-07-11 21:07 UTC

Matter ID: 226

Run ID: 59

Completeness: 75%

Federal

| In-absentia Removal Claim

Claim Type: identified | **Confidence:** 10%

ISSUE

The facts indicate that if Marisol does not attend the scheduled immigration hearing, an order of removal can be entered against her in absentia.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): What is the date of the scheduled immigration hearing, and have you received any notices regarding it?

CONCLUSION

No elements defined

General

| Employment and Social Security Issue

Claim Type: discovered | **Confidence:** 85%

ISSUE

Using someone else's social security number could lead to further legal troubles, especially in relation to her immigration case and any proceedings under employment law.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Do you have any records or documentation related to your use of someone else's social security number, and have you sought legal advice regarding this matter?

CONCLUSION

No elements defined

| Child Custody and Support Issue

Claim Type: discovered | **Confidence:** 70%

FOLIO IRI: <https://folio.openlegalstandard.org/RCEchldQJ7ND4j4oheflEg>

ISSUE

Ensuring that she has a legal understanding of her rights concerning her child's custody and support obligations is critical for her overall stability as a parent.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Have you established any legal custody arrangements concerning your child, and do you understand your rights regarding child support?

CONCLUSION

No elements defined

| Child Custody Claim

Claim Type: discovered | **Confidence:** 70%

FOLIO IRI: <https://folio.openlegalstandard.org/RZm4akQHkbU4y4YWTSSjrO>

ISSUE

Marisol's immigration status, pending criminal case, and the situation concerning her child necessitate legal awareness of custody alternatives, especially if she has to navigate removal proceedings or advocate for her son's well-being.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Child Custody Claim' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): Are you aware of how your immigration status and any potential removal proceedings may affect your custody rights concerning your child?

CONCLUSION

No elements defined

| Criminal Proceedings Awareness

Claim Type: discovered | **Confidence:** 40%

ISSUE

Understanding her rights and options within the criminal justice system can help her navigate both her personal safety and her immigration situation more effectively.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Do you understand your rights in the ongoing criminal proceedings against Danilo, and have you been advised about how these may impact your immigration case?

CONCLUSION

No elements defined

| Abuse History Documentation Claim

Claim Type: discovered | **Confidence:** 30%

ISSUE

Documenting past abuse will support her claims as a victim and may also influence her immigration case, potentially qualifying her for protections or relief based on her status as a victim of domestic violence.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Abuse History Documentation Claim' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): Have you been able to document the instances of abuse, and do you have any evidence that can support your claims in your immigration case?

CONCLUSION

No elements defined

| Asylum Case Claim

Claim Type: discovered | **Confidence:** 20%

ISSUE

Since Rigoberto charged her a fee and claimed to file her asylum application, there may be significant issues regarding the adequacy of her representation and the status of her application, which can impact her current immigration proceedings.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): What specific actions did Rigoberto take with respect to your asylum application, and have you confirmed the status of this application?

CONCLUSION

No elements defined

Minnesota

| Domestic Violence Claim

Claim Type: identified | **Confidence:** 10%

ISSUE

Marisol reports that Danilo hit her multiple times and there is a police report documenting domestic assault.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Have you reported the domestic violence incidents to law enforcement, and are there any records of police involvement or charges filed?

CONCLUSION

No elements defined

| Restraint Order Claim

Claim Type: discovered | **Confidence:** 10%

ISSUE

Given the history of domestic violence, a restraining order may be appropriate to ensure Marisol's safety.

RULE

No authorities identified for this claim.

APPLICATION

- **Jurisdiction:** Unsupported - The court must have jurisdiction over the parties.
- **Credible Threats or Acts of Violence:** Supported (85% confidence) - There must be evidence of a credible threat or act of violence by the abuser.
 - Fact: Marisol Gomez stated that Danilo Cruz Martinez struck her during an argument after he had been drinking. (85% match)
- **Relationship:** Supported (85% confidence) - The parties have a domestic relationship (spouses).
 - Fact: Marisol Gomez and Danilo Cruz Martinez are spouses. (85% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 10): Element 'Jurisdiction' is not yet supported by any facts
 - Element: Jurisdiction
- **Procedural Requirement** (Priority 50): Have you filed for or considered filing a restraining order to ensure your safety from Danilo?

CONCLUSION

2 of 3 elements supported (57% confidence)

| Victims of Crime Rights Claim

Claim Type: discovered | **Confidence:** 10%

ISSUE

As a victim of domestic assault, Marisol may have rights under the Minnesota Crime Victim Rights Act.

RULE

No authorities identified for this claim.

APPLICATION

- **Rights Notification:** Supported (85% confidence) - The victim must have been informed of their rights under the statute.
 - Fact: Marisol Gomez was provided with a copy of the Minnesota Crime Victim Rights brochure. (85% match)
 - Fact: The suspect, Danilo Cruz Martinez, was placed under arrest at the scene. (85% match)

- **Cooperation with Authorities:** Supported (85% confidence) - The victim is cooperating with law enforcement and the prosecution.
 - Fact: Marisol Gomez indicated she would continue to cooperate with the Hennepin County Attorney's Office as the criminal case proceeds. (85% match)
- **Victim Status:** Supported (85% confidence) - The claimant must be recognized as a victim of a crime.
 - Fact: Marisol Gomez stated that Danilo Cruz Martinez struck her during an argument after he had been drinking. (85% match)
 - Fact: Marisol Gomez is the victim. (85% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Have you informed the authorities about your status as a victim of crime, and are you aware of your rights under the Minnesota Crime Victim Rights Act?

CONCLUSION

3 of 3 elements supported (85% confidence)

Action Items

Documents to Gather

- [] **[HELPFUL]** Element 'Jurisdiction' is not yet supported by any facts
 - **Claim:** Restraint Order Claim
 - **Element:** Jurisdiction

Follow-up Steps

- [] **[URGENT]** PAST-DUE? Confirm the deadline for: I came to this country on August 14, 2019. (estimated 2020-08-14; INA § 208(a)(2)(B); 8 U.S.C. § 1158(a)(2)(B) (one-year filing deadline)).

WARNING: this deadline appears to have ALREADY PASSED as of 2026-07-11. Asylum applications generally must be filed within one year of arrival in the United States. Estimated — confirm the exact date with the court or a lawyer. Because this one-year asylum deadline appears to have already passed, you may still be able to apply if an EXCEPTION applies: 'changed circumstances' that materially affect eligibility, or 'extraordinary circumstances' that excuse the late filing (for example serious illness, or ineffective assistance / fraud by a notario or non-lawyer). This exception pathway is governed by INA § 208(a)(2)(D); 8 U.S.C. § 1158(a)(2)(D). Ask an immigration lawyer whether one of these exceptions applies to you — the late deadline may not be the end of your asylum claim.

- **Deadline:** 2020-08-14

- [] **[URGENT]** Confirm the deadline for: The court hearing is scheduled for August 20, 2026. (estimated 2026-08-20; The hearing date on your Notice to Appear / EOIR hearing notice (8 C.F.R. § 1003.18; INA § 239). Failure to appear can result in an in-absentia removal order.). This is the hearing date printed on your immigration court notice — you must appear. Estimated — confirm the exact date with the court or a lawyer.

- **Deadline:** 2026-08-20

- [] **[URGENT]** You described being hurt by a spouse who is a U.S. citizen or green-card holder. Federal law (VAWA) may let you apply for immigration status on your own, without their help or knowledge — this is called a VAWA self-petition. Has a lawyer ever talked with you about whether you qualify? [Authority: INA § 204(a)(1); 8 U.S.C. § 1154 (VAWA self-petition)]

- [] **[URGENT]** What you described — being physically hurt or threatened by a family or household member — may qualify you for an Order for Protection (a court order that can be issued the same day you ask, before any hearing). In Minnesota this is Minn. Stat. § 518B.01; other states have an equivalent. Would you like information about asking the court for one now, separate from any other case? [Authority: Minn. Stat. § 518B.01 (Order for Protection; ex parte relief available)]
- [] **[URGENT]** You said you were the victim of a crime and helped the police. Victims of certain crimes who cooperate with law enforcement may qualify for a U visa (U nonimmigrant status). This needs a certification form (I-918B) signed by the police or prosecutor — has anyone requested one for you? [Authority: INA § 101(a)(15)(U); 8 U.S.C. § 1101(a)(15)(U) (U nonimmigrant status; Form I-918 Supplement B certification)]
- [] **[URGENT]** Asylum applications normally must be filed within one year of arriving in the U.S. If your first year has passed — including if someone who was not a real lawyer took your money and never filed — you may still qualify under the 'changed circumstances' or 'extraordinary circumstances' exceptions (fraud by a notario can count). Ask a lawyer about the one-year-bar exceptions. When did you arrive, and did anyone ever actually file an asylum application for you? [Authority: INA § 208(a)(2)(B), (D); 8 U.S.C. § 1158(a)(2)(B), (D) (one-year bar; changed/extraordinary-circumstances exceptions)]
- [] **[URGENT]** You mentioned working with a Social Security number that is not yours. Working without authorization can normally block a green-card application filed inside the U.S. (the INA § 245(c)(2) bar) — BUT people approved under VAWA are exempt from that bar. A lawyer should review this together with any VAWA option. Have you told a lawyer about this work history? [Authority: INA § 245(c)(2); 8 U.S.C. § 1255(c)(2) (unauthorized-employment bar; VAWA self-petitioners exempt)]

- [] **[URGENT]** About the immigration papers (Notice to Appear) you received: did that first notice state the exact TIME, DATE, and PLACE of your court hearing, or were those details missing or sent later? A notice missing those details can matter to your case (it can affect eligibility clocks) — bring the original papers to a lawyer. [Authority: Pereira v. Sessions, 138 S. Ct. 2105 (2018); Niz-Chavez v. Garland, 141 S. Ct. 1474 (2021) (defective Notice to Appear)]
- [] **[IMPORTANT]** Potential claim 'Abuse History Documentation Claim' has not been explored with fact mappings
 - **Claim:** Abuse History Documentation Claim
- [] **[IMPORTANT]** Potential claim 'Child Custody Claim' has not been explored with fact mappings
 - **Claim:** Child Custody Claim
- [] **[IMPORTANT]** What is the date of the scheduled immigration hearing, and have you received any notices regarding it?
 - **Claim:** In-absentia Removal Claim
- [] **[IMPORTANT]** Have you reported the domestic violence incidents to law enforcement, and are there any records of police involvement or charges filed?
 - **Claim:** Domestic Violence Claim
- [] **[IMPORTANT]** Have you filed for or considered filing a restraining order to ensure your safety from Danilo?
 - **Claim:** Restraint Order Claim
- [] **[IMPORTANT]** Have you informed the authorities about your status as a victim of crime, and are you aware of your rights under the Minnesota Crime Victim Rights Act?
 - **Claim:** Victims of Crime Rights Claim

- [] **[IMPORTANT]** What specific actions did Rigoberto take with respect to your asylum application, and have you confirmed the status of this application?
 - **Claim:** Asylum Case Claim
- [] **[IMPORTANT]** Do you have any records or documentation related to your use of someone else's social security number, and have you sought legal advice regarding this matter?
 - **Claim:** Employment and Social Security Issue
- [] **[IMPORTANT]** Do you understand your rights in the ongoing criminal proceedings against Danilo, and have you been advised about how these may impact your immigration case?
 - **Claim:** Criminal Proceedings Awareness
- [] **[IMPORTANT]** Have you established any legal custody arrangements concerning your child, and do you understand your rights regarding child support?
 - **Claim:** Child Custody and Support Issue
- [] **[IMPORTANT]** Have you been able to document the instances of abuse, and do you have any evidence that can support your claims in your immigration case?
 - **Claim:** Abuse History Documentation Claim
- [] **[IMPORTANT]** Are you aware of how your immigration status and any potential removal proceedings may affect your custody rights concerning your child?
 - **Claim:** Child Custody Claim

Gap Report Appendix

Overall Completeness: 75%

[===== - - - -] 75%

Abuse History Documentation Claim

- **Unexplored Claim** (Priority 50): Potential claim 'Abuse History Documentation Claim' has not been explored with fact mappings
 - See Action Item #9
- **Procedural Requirement** (Priority 50): Have you been able to document the instances of abuse, and do you have any evidence that can support your claims in your immigration case?
 - See Action Item #19

Asylum Case Claim

- **Procedural Requirement** (Priority 50): What specific actions did Rigoberto take with respect to your asylum application, and have you confirmed the status of this application?
 - See Action Item #15

Child Custody Claim

- **Unexplored Claim** (Priority 50): Potential claim 'Child Custody Claim' has not been explored with fact mappings
 - See Action Item #10
- **Procedural Requirement** (Priority 50): Are you aware of how your immigration status and any potential removal proceedings may affect your custody rights concerning your child?
 - See Action Item #20

Child Custody and Support Issue

- **Procedural Requirement** (Priority 50): Have you established any legal custody arrangements concerning your child, and do you understand your rights regarding child support?
 - See Action Item #18

Criminal Proceedings Awareness

- **Procedural Requirement** (Priority 50): Do you understand your rights in the ongoing criminal proceedings against Danilo, and have you been advised about how these may impact your immigration case?
 - See Action Item #17

Domestic Violence Claim

- **Procedural Requirement** (Priority 50): Have you reported the domestic violence incidents to law enforcement, and are there any records of police involvement or charges filed?
 - See Action Item #12

Employment and Social Security Issue

- **Procedural Requirement** (Priority 50): Do you have any records or documentation related to your use of someone else's social security number, and have you sought legal advice regarding this matter?
 - See Action Item #16

In-absentia Removal Claim

- **Procedural Requirement** (Priority 50): What is the date of the scheduled immigration hearing, and have you received any notices regarding it?
 - See Action Item #11

Restraint Order Claim

- **Unsupported Element** (Priority 10): Element 'Jurisdiction' is not yet supported by any facts
 - Element: Jurisdiction
 - See Action Item #21

- **Procedural Requirement** (Priority 50): Have you filed for or considered filing a restraining order to ensure your safety from Danilo?

- See Action Item #13

Uncategorized

- **Procedural Requirement** (Priority 90): You described being hurt by a spouse who is a U.S. citizen or green-card holder. Federal law (VAWA) may let you apply for immigration status on your own, without their help or knowledge — this is called a VAWA self-petition. Has a lawyer ever talked with you about whether you qualify? [Authority: INA § 204(a)(1); 8 U.S.C. § 1154 (VAWA self-petition)]

- See Action Item #3

- **Procedural Requirement** (Priority 88): You said you were the victim of a crime and helped the police. Victims of certain crimes who cooperate with law enforcement may qualify for a U visa (U nonimmigrant status). This needs a certification form (I-918B) signed by the police or prosecutor — has anyone requested one for you? [Authority: INA § 101(a)(15)(U); 8 U.S.C. § 1101(a)(15)(U) (U nonimmigrant status; Form I-918 Supplement B certification)]

- See Action Item #5

- **Procedural Requirement** (Priority 86): You mentioned working with a Social Security number that is not yours. Working without authorization can normally block a green-card application filed inside the U.S. (the INA § 245(c)(2) bar) — BUT people approved under VAWA are exempt from that bar. A lawyer should review this together with any VAWA option. Have you told a lawyer about this work history? [Authority: INA § 245(c)(2); 8 U.S.C. § 1255(c)(2) (unauthorized-employment bar; VAWA self-petitioners exempt)]

- See Action Item #7

- **Procedural Requirement** (Priority 84): About the immigration papers (Notice to Appear) you received: did that first notice state the exact TIME, DATE, and PLACE of your court hearing, or were those details missing or sent later? A notice missing those details can matter to your case (it can affect eligibility clocks) — bring the original papers to a lawyer. [Authority: *Pereira v. Sessions*, 138 S. Ct. 2105 (2018); *Niz-Chavez v. Garland*, 141 S. Ct. 1474 (2021) (defective Notice to Appear)]

- See Action Item #8

- **Procedural Requirement** (Priority 88): Asylum applications normally must be filed within one year of arriving in the U.S. If your first year has passed — including if someone who was not a real lawyer took your money and never filed — you may still qualify under the 'changed circumstances' or 'extraordinary circumstances' exceptions (fraud by a notario can count). Ask a lawyer about the one-year-bar exceptions. When did you arrive, and did anyone ever actually file an asylum application for you? [Authority: INA § 208(a)(2)(B), (D); 8 U.S.C. § 1158(a)(2)(B), (D) (one-year bar; changed/extraordinary-circumstances exceptions)]

- See Action Item #6

- **Procedural Requirement** (Priority 90): What you described — being physically hurt or threatened by a family or household member — may qualify you for an Order for Protection (a court order that can be issued the same day you ask, before any hearing). In Minnesota this is Minn. Stat. § 518B.01; other states have an equivalent. Would you like information about asking the court for one now, separate from any other case? [Authority: Minn. Stat. § 518B.01 (Order for Protection; ex parte relief available)]

- See Action Item #4

Victims of Crime Rights Claim

- **Procedural Requirement** (Priority 50): Have you informed the authorities about your status as a victim of crime, and are you aware of your rights under the Minnesota Crime Victim Rights Act?
 - See Action Item #14

Open Questions

1. Has a lawyer ever talked with you about whether you qualify for a VAWA self-petition, which allows you to apply for immigration status on your own?
2. Did anyone request a U visa certification (Form I-918B) for you after you helped the police?
3. What actions did Rigoberto take regarding your asylum application, and have you confirmed the status of this application?
4. Have you sought legal advice regarding your work history using someone else's social security number?
5. When did you arrive in the U.S., and did anyone ever actually file an asylum application for you?
6. Did that first immigration notice you received state the exact time, date, and place of your court hearing, or were those details missing?
7. How does your ongoing immigration status and any potential removal proceedings affect your custody rights regarding your child?
8. Have you reported the domestic violence incidents to law enforcement, and are there any records of police involvement or charges filed?
9. Have you documented the instances of abuse, and do you have any evidence that can support your claims in your immigration case?

10. Have you filed for or considered filing a restraining order against Danilo to ensure your safety?
11. Would you like information about how to obtain an Order for Protection from the court?
12. Have you established any legal custody arrangements concerning your child, and do you understand your rights regarding child support?
13. Are you aware of your rights as a victim of crime under the Minnesota Crime Victim Rights Act?